

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
EMANUEL MARKS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER PAOLA
RUSSELL, TAX I.D. NO. 941134, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 5TH PRECINCT,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
2333 5th Avenue, Apt. 5AA
New York, New York 10037

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 14, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
EMANUEL MARKS
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER PAOLA RUSSELL,
TAX I.D. NO. 941134, c/o
5th Precinct
19 Elizabeth Street
New York, New York 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EMANUEL MARKS,

Plaintiff,

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CITY OF NEW YORK, POLICE OFFICER PAOLA
RUSSELL, TAX I.D. NO. 941134, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 5TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff EMANUEL MARKS by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, acted within the scope of her employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, was acting under the color and pretense of the statutes,

ordinances, regulations, customs, and usages of the County of New York and City of New York, and under the authority of her office as a police officer for said county and city.

6. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of Bronx, City of New York, and under the authority of their office as police officers for said county and city.

9. That on September 6, 2012, at approximately 10:30 a.m., Plaintiff EMANUEL MARKS was lawfully in front of the Bloomingdales department store located at 504 Broadway in the County, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT.

10. That on the aforementioned date, time and place, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, stopped Plaintiff EMANUEL MARKS ordered Plaintiff to show them identification, and frisked Plaintiff despite Defendants' knowledge that they lacked reasonable suspicion to do so.

11. Thereafter, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT handcuffed Plaintiff EMANUEL MARKS and placed him under arrest for Grand

Larceny (4th degree) despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff EMANUEL MARKS was transported to the 5th Precinct (19 Elizabeth Street, New York, New York 10013) and thereafter to New York Central Booking for arraignment.

13. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT initiated criminal proceedings against Plaintiff EMANUEL MARKS despite Defendants' knowledge that they lacked probable cause to do so.

14. That Plaintiff EMANUEL MARKS was held in defendants' custody from September 6, 2012, until he was released on or about September 15, 2012.

15. That on or about February 25, 2013, all charges against Plaintiff EMANUEL MARKS related to the complained of incident were dismissed (Docket Number 2012NY069803).

16. That on December 5, 2012, within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff EMANUEL MARKS duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

17. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT.

18. That, upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing in this matter.

19. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

20. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

21. That at the aforementioned time and place, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, placed Plaintiff EMANUEL MARKS under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

22. That Plaintiff EMANUEL MARKS had not committed any offense and Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

23. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff EMANUEL MARKS and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff EMANUEL MARKS and such actions were committed in bad faith.

24. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff EMANUEL MARKS and such actions were committed in bad faith.

25. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff EMANUEL MARKS was deprived of the rights and immunities secured to him under the

Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

26. As a further result of the above-described acts, Plaintiff EMANUEL MARKS was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

27. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

28. That Plaintiff EMANUEL MARKS was falsely imprisoned from approximately 10:30 a.m. on September 6, 2012, to approximately 6:00 p.m. on September 15, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

29. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT intended to confine Plaintiff EMANUEL MARKS and Plaintiff EMANUEL MARKS was conscious of the confinement, and Plaintiff EMANUEL MARKS did not consent to the confinement.

30. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff EMANUEL MARKS and

damaging Plaintiff EMANUEL MARKS in his reputation and depriving him of his liberty.

31. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff EMANUEL MARKS suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

32. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

33. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT misrepresented and falsified evidence before the District Attorney.

34. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT did not make a complete and full statement of facts to the District Attorney.

35. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT withheld exculpatory evidence from the District Attorney.

36. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT were directly and actively involved in the initiation of criminal proceedings against Plaintiff EMANUEL MARKS.

37. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff EMANUEL MARKS.

38. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT acted with malice in initiating criminal proceedings against Plaintiff EMANUEL MARKS.

39. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff EMANUEL MARKS.

5. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT lacked probable cause to continue criminal proceedings against Plaintiff EMANUEL MARKS.

41. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT acted with malice in continuing criminal proceedings Plaintiff EMANUEL MARKS.

42. That Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

43. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, the criminal proceedings were terminated in Plaintiff EMANUEL MARKS's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

44. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that

constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

46. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

47. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff EMANUEL MARKS.

48. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff EMANUEL MARKS as alleged herein.

49. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff EMANUEL MARKS as alleged herein.

50. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff EMANUEL MARKS's constitutional rights.

51. All of the foregoing acts by defendants deprived Plaintiff EMANUEL MARKS of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

52. Plaintiff EMANUEL MARKS repeats, reiterates and realleges each and every allegation contained in this complaint.

53. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff EMANUEL MARKS's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

54. As a result of the aforementioned conduct of the individual Defendants, Plaintiff EMANUEL MARKS's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR
FALSE ARREST UNDER NEW YORK STATE LAW**

55. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

56. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, arrested Plaintiff EMANUEL MARKS in the absence of probable cause and without a warrant.

57. As a result of the aforesaid conduct by Defendants CITY OF NEW YORK, POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, Plaintiff EMANUEL MARKS was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

58. The aforesaid actions by Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT constituted a deprivation of Plaintiff EMANUEL MARKS's rights.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

59. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

60. As a result of the foregoing, Plaintiff EMANUEL MARKS was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

61. Plaintiff EMANUEL MARKS was conscious of said confinement and did not consent to same.

62. The confinement of Plaintiff EMANUEL MARKS was without probable cause and was not otherwise privileged.

63. As a result of the aforementioned conduct, Plaintiff EMANUEL MARKS has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**AS AND FOR A EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER NEW YORK STATE LAW**

64. Plaintiff EMANUEL MARKS repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

65. On or about September 6, 2012, Defendant CITY OF NEW YORK, its agents, servants, and employees, including Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, commenced a criminal proceeding against Plaintiff EMANUEL MARKS, and falsely and maliciously, and without probable cause, charged Plaintiff with crimes.

66. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, with the consent and participation of one another, continued said proceeding despite the fact that they knew or should have known that Plaintiff EMANUEL MARKS had not committed any crimes, that there were no exigent circumstances justifying a warrantless arrest, and that there was no

need for the arrest and imprisonment of Plaintiff.

67. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, were directly and actively involved in the initiation of criminal proceedings against Plaintiff EMANUEL MARKS.

68. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT lacked probable cause to initiate criminal proceedings against Plaintiff EMANUEL MARKS.

69. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, were motivated by actual malice in initiating criminal proceedings against Plaintiff EMANUEL MARKS.

70. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, misrepresented and falsified evidence before the District Attorney.

71. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, did not make a complete and full statement of facts to the District Attorney.

72. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, withheld exculpatory evidence from the District Attorney.

73. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT were directly and actively involved in the continuation of criminal proceedings against Plaintiff EMANUEL MARKS.

74. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, lacked

probable cause to continue criminal proceedings against Plaintiff EMANUEL MARKS.

75. Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, were motivated by actual malice in continuing criminal proceedings against Plaintiff EMANUEL MARKS.

76. That, notwithstanding the perjurious and fraudulent conduct of Defendants, on February 25, 2013, the criminal proceedings were terminated in Plaintiff EMANUEL MARKS's favor.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION UNDER NEW YORK STATE LAW**

77. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

78. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

79. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE

5th PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION UNDER NEW YORK STATE LAW**

80. Plaintiff EMANUEL MARKS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

81. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff EMANUEL MARKS. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

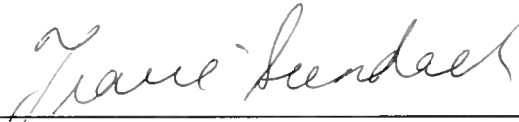
82. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5th PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff EMANUEL MARKS.

83. As a result of the foregoing, Plaintiff EMANUEL MARKS is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff EMANUEL MARKS demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER PAOLA RUSSELL, TAX I.D. NO. 941134, and

SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 5TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 14, 2013



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

EMANUEL MARKS

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

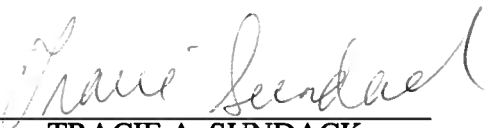
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 14, 2013



TRACIE A. SUNDACK